THE LETTERS OF THE RAMBAM

Why No Names, No Sources? The Rambam Defends the Mishneh Torah

Letter to Rav Pinehas, Part 2

Source: Igrot HaRambam: the letter to **Rav Pinchas ben Meshullam HaDayan** of Alexandria (Hebrew original, Shilat edition), Section 2

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 25 March 2025

These notes are based on the Sofer.ai transcript of the recording.

Recap

The series so far: the letters to **Ovadia** the convert in Jerusalem, to the **sages of Montpellier** on astrology, to **Ibn Jabbar** in Iraq, and the letter on **martyrdom**. Now the fifth: to **Rav Pinchas HaDayan**, who moved from **Provence** to become dayan of **Alexandria**, and whose relationship with the Rambam was **strained**. Written **c. 1185–1195**.

The letter has **five parts**:

Part	Content	When
1	"I was ill, not ignoring you." But I **was** angry that you **caved in to the masses** and preached the "severity" of washing after an emission, **a custom**, when the law permits	Last week
2	**The purpose of the Mishneh Torah**: "the main part of the letter"	**Tonight**
3–5	Shorter, more technical sections	Next week

Background: What the Mishneh Torah Was

"His *magnum opus* is certainly the Mishneh Torah. **There was no one like him to do anything like it before him, and no one has done anything like it since.**"

The problem it solved

The **Talmud is a discussion**. Many things come up that aren't relevant to the point, and the laws of any one topic are **scattered across Shas**.

The Rif came closest, but it isn't the same

Rav Yitzchak Alfasi (the **Rif**), from North Africa, a century or more before the Rambam, **abridged the Talmud**, keeping only the halachic material. But it still follows the **Talmud's**

order:

	Rif	Mishneh Torah
Method	Goes through the Talmud tractate by tractate, keeping the halachah	**Reorganises** all of halachah by **topic**
To learn all the laws of Shabbat	Tractate Shabbat in the Rif contains material **not** about Shabbat, and **misses** Shabbat laws found **elsewhere** in Shas	**One section**: Hilchot Shabbat
Sources	The Babylonian Talmud	**Bavli, Yerushalmi, Sifra, Sifrei, Tosefta, baraitot**: all of rabbinic literature
Shape	An abridged Talmud	**Fourteen books** of clear rulings

Controversy

His books were later **burnt**, "but that was more because people didn't like the Rambam's **philosophy** in other works." Here, by contrast, Pinchas criticises **the Mishneh Torah itself**.

Pinchas's Four Criticisms

The Rambam quotes Pinchas: *your Mishneh Torah is wonderful, but only for those who already know Talmud and the names of the Sages.*

#	Criticism
1	**You don't name the Sages.** The Mishnah and Gemara are full of *Rabbi Yehudah says, Rabbi Meir says*; you never say who said what
2	**People misread your book and err in halachah**
3	**You don't make clear that Talmud study is essential.** People think the Mishneh Torah is enough. You should **preach** that they mustn't neglect the Talmud
4	**You give no sources.** How do I know you're right? I find laws whose source I can't locate

Behind criticism 3: the Rambam's own introduction says that one who learns **Torah sheBichtav** and then **his book** will know the whole Oral Law, which is why it's called **Mishneh Torah**, the "second Torah."

"Some of these criticisms recur **over and over throughout the generations**." As recently as a generation ago, **Chabad**, for whom **daily study of the Mishneh Torah** is central, was criticised by **Rav Shach** for the same reason: *it isn't enough to study the Rambam; study the Talmud.*

"So the Rambam addresses it in black and white here, and that's why this is such a crucial letter."

The opening rebuke

I have to **tell you off**. **I know deep down how you feel about me**, even if you didn't say it: **you don't give weight to who I am and what I've written.**

Answer to Criticism 3: "I Never Said Don't Study Talmud"

Hashem is my witness: around where I live, **only two or three people** are studying parts of my Mishneh Torah. **Most of my students I've taught the whole Rif.** Whoever asked me to learn **Talmud** with them, I learned whatever they wanted.

"Imagine asking the Rambam, *I want to learn Talmud with you*, and he says *yes, sure*."

Did I ever ask, or think, that **every earlier book is no longer relevant** and only mine should be learned? I wrote at the start of the Mishneh Torah that it's **for those who don't have the time**, or the capacity to work through the Talmud. For them I made **a *kitzur***, the plain halachah. **But I never, *chas veshalom*, said don't study Talmud.**

A tension to note

In **another letter**, to his translator **Ibn Tibbon** (to be learned in the summer), the Rambam **does** seem to suggest that people **waste their time** on the Talmud's dialectic: "I'm not saying these words lightly." "We will try to understand that when we learn that letter." **Here**, though, he is unequivocal: people **must** study Talmud, and that's what he teaches.

Answer to Criticisms 1 and 2: No Names, and Misreadings

a) "I listed them all at the start"

The **introduction to the Mishneh Torah** traces the whole **chain of tradition**, generation by generation. "We've never done this together; we will, with Hashem's help." **I listed all the names there in order. Why repeat them?**

b) "No one has done what I did since Rabbeinu HaKadosh"

There were **many books before me** that abridged halachah, in **Hebrew and in Arabic**. But **no one since Rabbi Yehudah HaNasi**, who wrote the Mishnah, has done what I did: condense **all** of halachah into clear statements.

On misreadings:

"When you write a book, **I can't walk around with it explaining it to everyone.** You write it, you give it out, people make mistakes. **It's their problem.**"

c) *Chibbur* versus *perush*: the heart of the answer

Anyone who writes a book, in Torah or any other discipline, Jewish author or not, takes one of two approaches.

	chibbur: composition ,חיבור	*perush*: commentary ,פירוש
What it is	Your **own** composition, to the point	Explains, **dissects and analyses** an earlier text
Contents	**Only the correct points**: no questions, no answers, no proofs. "The dry facts"	The correct view **and** the contradictory ones, **questions on each**, the **answers**, and the **proofs** that this view is right and that one wrong
Model	**The Mishnah**: Rabbi Yehudah HaNasi gathered the views and said *this is the halachah*	**The Talmud**: the Amoraim commenting on the Mishnah. (Likewise **Rashi** on Shas)
The Mishneh Torah	✔ "I wanted it **in the way of the Mishnah**"	✘

You didn't pay attention to what I wrote. You don't understand the difference between Mishnah and Gemara. That's why you keep writing that you find laws in my book whose source you don't know.

He softens it with a title (*"my chieftain"*), "I'm respecting you, giving you nice titles, **but you haven't understood**."

d) "But the Mishnah does quote names!"

The obvious challenge: the Mishnah often says *this Rabbi says, that Rabbi says.* The Rambam explains **why**, "an important principle when learning Mishnah":

1. **Most mishnayot have no names at all.** A **סתם משנה**, an **anonymous** Mishnah, is **authoritative**: that is the halachah.
2. **Even named statements don't trace the chain.** Rabbi Meir got his teaching from his teacher, and he from his; the Mishnah never lists the chain back.
3. **Rabbi sometimes merged two Sages' views** he thought correct into **one anonymous mishnah**, without saying where each came from.
4. **He named Sages only where he was unsure of the halachah *and* communities followed different views.** Naming them showed that **each practice had authority** (Rabbi Meir's, Rabbi Shimon's), so **those following it shouldn't be castigated**.

The proof: Mishnah Eduyot, chapter 1. Why record **Shammai**, or **one Sage against the majority**, if the law doesn't follow them? So that a **beit din** or community following that minority view has an **authority to rely on**.

e) Why that doesn't apply now

In the Mishnah's time, **some communities did this and some did that**. Once the **Talmud was sealed**, there is **one Jewish approach**; **the vast majority of the vast majority** practise it. There are no longer two camps.

f) Names invite people to reject the law

If I wrote *this law comes from Rabbi X*, people would say **"that's his opinion; I don't have to follow it,"** and they'd be **בועט**, kick against it. All Israel **accepted the Talmud**, and so its Sanhedrin-level authority. **I want every halachah to appear to the one studying it as *the* halachah**, **stam, divrei hakol.** Not "he thinks this, he says that." **This is the law. Follow the law. Full stop.**

Summary of his answer on names

#	Answer
1	**All the names are in the introduction**
2	**I wrote a *chibbur***, a composition like the Mishnah, **not a *perush*** like the Talmud
3	The Mishnah named Sages **only where communities followed differing valid views**; since the Talmud, **all Israel follows one halachah**
4	**Names would let people dismiss the law** as one man's opinion

"You criticised me because you **misunderstand my purpose**. If you'd taken a bit more time to understand, you wouldn't have this problem."

Answer to Criticism 4: "Where Are Your Sources?"

"Perhaps the most amazing part of the letter." Pinchas had implied the Rambam **wrote things from his own mind and passed them off** as established law.

I never did any such thing. Open your ear and your wisdom and pay attention.

The Rambam's own key to his book

How it's written	Where it comes from
Stated plainly, no qualification	**Certainly from the Sages**: **Bavli, Yerushalmi, Sifra, Sifrei, Mishnah, Tosefta**, the halachic works of Chazal
"The Geonim ruled..."	From the **Geonim** (c. 650–1000 CE; "like we learned on Monday nights")
"It seems to me..." / "From this I deduce..."	**My own conclusion**, labelled as such

So what's your problem? Why should I write the sources? Look in the Talmud.

What Pinchas *should* have said

What you should have said is that **you sometimes can't remember where the source is**. That happens to rabbis. **Only great rabbis like you** (the barb and the compliment together) can appreciate **how much toil I put into this book**.

"Not like the Rif. I swear."

Most people think my work is **like the Rif's**: that I abridged, removed the questions and answers, and gave the conclusion. **That's not what I did, I swear.**

The scale: 14 books, each of roughly **10 sections**, each of roughly **10 chapters**, and **a single chapter is sometimes drawn from ten places** in rabbinic literature.

"To write a chapter with **the entire framework of Chazal** in mind, and select *this goes here, that goes there*. Who can do that? That's incredible."

I didn't follow the order of the Talmud. I gathered everything together so that it would no longer be scattered, so you can find it in **one place**. That was my whole purpose.

It's impossible for anyone in the world to remember the entire Talmud constantly. When I had it all in my head (Bavli, Yerushalmi, Sifra, Sifrei), **I put it together**, sometimes from ten different places for one chapter.

The story of the dayan and the law of murder

A certain **dayan** came to me (older, apparently: he speaks down to him) holding the **Book of Damages**, open at the **laws of murder**. He showed me a law: **"What's your source?"**

Where the Rambam looked	Result
Makkot and **Sanhedrin**, where laws of murder belong	Went through **all of both**. Not there
The Yerushalmi	Not there. "I was very shocked, confused"
Gittin: "it must come up incidentally in the laws of divorce"	Not there either. "**I was really astonished at myself.** Where did I get this from?"
"Please give me a moment." **The dayan left, and immediately I remembered**	Sent someone to **bring him back**, and showed him: it came **incidentally**, in a tractate dealing with **marriage**. The dayan was astonished, and left

"I always get scared"

Whenever people ask me "what's your source?", I get scared and upset. Sometimes I answer at once: *look in this tractate.* **Sometimes I don't know until I search for it.** If even **I** can't remember, what will others do?

How do I console myself? I remind myself that that wasn't the purpose. My purpose was **the dry laws, all the scattered laws together in one place.**

The book he planned and never wrote

With Hashem's help, I plan another book giving the sources for every law, though it will be **very cumbersome**.

The plan:

- A law in **Hilchot Shabbat** sourced in **Tractate Shabbat** gets **no citation**: "157 pages of Shabbat; **go and find it yourself**."

- A Shabbat law sourced **elsewhere in Shas** gets a citation: *this halachah stems from this tractate, that page.*

- **A separate book**, because putting sources **in** the Mishneh Torah would **ruin its purpose**: it is a *chibbur*, not a *perush*.

I repeat: **everything in the Mishneh Torah comes from Bavli, Yerushalmi, Tosefta, Sifra or Sifrei.** It's hard to find because **the Talmud's rules are scattered. Full stop.**

The Rabbi noted in passing: the Rambam calls the Pesach laws **Hilchot Chametz uMatzah**, while the **Shulchan Aruch** calls them **Hilchot Pesach**, "interesting in itself." Under the plan, a law there drawn from **Pesachim** would go unsourced; one drawn from elsewhere would be cited.

The Irony: The Most-Commented Book of the Rishonim

Did the Rambam write that book? No. But **dozens did it for him**:

Commentary	
Kesef Mishneh	Rav **Yosef Karo** (author of the Beit Yosef)
Maggid Mishneh	
Rabbeinu Manoach	
Lechem Mishneh	
...and many more	Each trying to find the sources

"I'm almost sure this is correct. Yes, I say this with confidence: **there is no book of the Rishonim**, maybe Rashi aside, **with as much commentary on it as the Mishneh Torah.**" The Rif and the Rashba have a few; but **the Ra'avad** was already writing on the Rambam right away, "and then on and on."

"**This is the funny thing.** The Rambam made a book where all you need is *the Torah and my book*. Now you learn his book, and **around it are tens and hundreds of commentaries.**"

Why? Because **he never wrote the source book**. Much of the debate over the Rambam is **what his source was**, because **what he means depends on where he took it from**. One commentator says it's from here, so he means this; another says from there, so he means that, **and you get a *machloket* over the Rambam's meaning.** Had he written the sources, **much of that would evaporate**.

One of the Rabbi's teachers: **"If the Rambam had known what they would do to his book, he wouldn't have written it."** "The whole purpose was a clear *this is it, open it, that's it*."

Takeaways

Learn the Mishneh Torah, in order

If you've never studied it in order, **try to find the time and complete it**: once a week, once a day, **one or two halachot**. Especially for someone without much time for halachah or Talmud. **"If you know the Mishneh Torah inside out, you basically know the whole Torah."**

A test of authority

Since **all of Chazal** is condensed into those 14 books, **anything you never came across in the Mishneh Torah is not from Chazal**. Someone else said it, and **it doesn't carry the same authority**.

Kitniyot: there's **no mention at all in the Rambam**. It came in around the **1300s**, after him. So "**it can't have the same *tokef***, the same power and authority. **The only thing that binds us is the Torah and the Sages of the last Sanhedrin**: anything in the Bavli and Yerushalmi binds us. Other things are **a notch down**."

(The recording was paused for part of this discussion.)

Summary

1. **Pinchas's four criticisms:** no **names**, people **err**, it discourages **Talmud** study, no **sources**.
2. **Talmud:** "Hashem is my witness": only two or three around him study the Mishneh Torah; **he teaches the Rif and Talmud** to the rest. The book is a ***kitzur* for those without the time**, never a replacement. (Contrast the letter to **Ibn Tibbon**, to come.)
3. **Names:** listed in the **introduction**; the book is a ***chibbur*** like the **Mishnah**, not a ***perush*** like the Talmud. The Mishnah named Sages only where **communities followed different valid views** (Eduyot 1). After the Talmud, **one halachah for all**, and names would invite people to **dismiss the law** as one man's view.
4. **Misreadings:** an author **can't walk around explaining his book**. No one since **Rabbi Yehudah HaNasi** attempted this.
5. **Sources: plain statement = Chazal; "the Geonim" = Geonim; "it seems to me" = my own.** Chapters drawn from **ten places**; **no one can hold the whole Talmud in mind**. The **story of the law of murder**: even the Rambam sometimes **couldn't find his own source**, until he did.
6. **The unwritten source book**: planned, never written; so the **Kesef Mishneh, Maggid Mishneh, Lechem Mishneh** and countless others did it, making it **the most-commented work of the Rishonim**.
7. **Practical:** learn the Mishneh Torah **in order**; what isn't in it **isn't Chazal** (e.g. **kitniyot**).

Coming Up

Next week, 8–9, the final shiur of the season: Sections 3–5. Pinchas complains the Rambam said publicly that **"the dayan of Alexandria knows nothing and doesn't know Talmud,"** and never answered his questions. Shorter, more technical sections; then five letters complete, **January to March**, with a new series after Pesach.

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